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File No: EXP202401083

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 1, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against HOGAR LUZ Y GAS S.L. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No: EXP202401083

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection, and based on the following

FACTS

FIRST: As a result of a complaint filed with the Spanish Agency for Data Protection against HOGAR LUZ Y GAS S.L. with NIF B02832673 (hereinafter, the respondent), signs of a possible breach of the regulations within the competencies of the Spanish Agency for Data Protection were observed, leading to the initiation of actions under file number EXP202212242.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD hereinafter), the complaint was forwarded to the responsible party or to the Data Protection Officer that may have been designated, requesting that they send to this Agency the information and documentation indicated.

The forwarding, which was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the responsible party within the availability period, as evidenced by the acknowledgment of receipt in the file, understanding that the procedure was carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on December 2, 2022.

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Although the notification was validly carried out by electronic means, for informational purposes, a copy was sent by postal mail which was returned to the sender by Correos on December 27, 2022, due to being unclaimed (not picked up at the office after a notice was left in the mailbox), according to the acknowledgment of receipt in the file.

On February 11, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD.

In the framework of the investigative actions, a request for information was sent twice to the respondent, regarding the complaint indicated in the first section, asking them to submit the information and documentation specified to this Agency within ten working days.

THIRD: The aforementioned request for information was notified in accordance with the rules established in the LPACAP. On June 21, 2023, it was returned to the sender by Correos due to unknown recipient despite being sent to the address provided by the complainant and which appears in the Commercial Registry as the registered social and commercial address of the respondent. On

November 28, 2023, it was delivered to the respondent by electronic means. All of this is evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, the respondent has not submitted any response to this Spanish Agency for Data Protection.

FIFTH: According to the report obtained from the Axesor tool, the entity HOGAR LUZ Y GAS S.L. is a SME (Microenterprise), established in 2020, for which no financial information is available.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each control authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions...

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in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued in its development and, as long as they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

Unfulfilled Obligation

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the complained party has not provided the information requested by the Spanish Agency for Data Protection.

With the aforementioned conduct of the complained party, the investigative power conferred to control authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the "Facts" section are deemed to constitute an infringement, attributable to the complained party, for violation of Article 58.1 of the GDPR, which states that each control authority shall have, among its investigative powers:

"a) order the controller and the processor and, where applicable, the representative of the controller or the processor, to provide any information required for the performance of its functions."

III

Classification and Qualification of the Infringement

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the exposed facts could constitute an infringement, attributable to the complained party.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: "failure to provide access in violation of Article 58, paragraph 1."

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of a company, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the alleged infringement is subject to a three-year limitation period, in accordance with Article 72.1 of the LOPDGDD, which classifies the following conduct as very serious:

"ñ) Failure to provide access to the competent data protection authority's personnel to personal data, information, premises, equipment, and processing means required by the data protection authority for

the exercise of its investigative powers.”

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IV

Proposal for Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and in accordance with the provisions of Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR. Furthermore, to ensure a coherent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into consideration.

In light of the facts presented, without prejudice to what results from the instruction of the procedure, it is considered that a sanction should be imposed on the complained party for the violation of Article 58.1 of the GDPR classified under Article 83.5 e) of the GDPR. The sanction that would correspond to be imposed is an administrative fine of €4,000.00.

In the initial assessment, it is noted that no mitigating or aggravating factors apply.

Therefore, in light of the above,

By the Director of the Spanish Agency for Data Protection, IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against HOGAR LUZ Y GAS S.L., with NIF B02832673, for the infringement of Article 58.1 of the GDPR, classified under Article 83.5 e) of the aforementioned GDPR.

SECOND: TO ORDER HOGAR LUZ Y GAS S.L. to provide, in accordance with the investigative power provided in Article 58.1.a) of the GDPR, the information requested in the requirements made in the framework of the proceedings with file number EXP202212242 and referred to in the description of the facts of this initiation agreement, within a period of ten working days.

THIRD: TO APPOINT A.A.A. as the instructor and B.B.B. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

FOURTH: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the information requests issued by the General Subdirectorate of Data Inspection in the framework of the proceedings with file number EXP202212242; and the accreditation of having notified them.

FIFTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be, for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of that regulation, an administrative fine of €4,000.00, without prejudice to what results from the instruction.

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SIXTH: NOTIFY the present agreement to HOGAR LUZ Y GAS S.L., with NIF B02832673, granting a hearing period of ten working days for it to formulate allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the file number that appears in the heading of this document.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. After this period, it will expire, and consequently, the file will be archived; in accordance

with the provisions of Article 64 of the LOPDGDD.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 3,200.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, voluntarily pay the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 3,200.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 2,400.00 euros.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned on the withdrawal or waiver of any action or administrative appeal against the sanction.

In the event that it opts to proceed with the voluntary payment of any of the amounts indicated above (3,200.00 euros or 2,400.00 euros), it must do so by depositing it into account no. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled.

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Likewise, it must send the proof of payment to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to it will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if it does not access them, its rejection will be recorded in the file, considering the procedure completed and continuing with the process. It is informed that it can identify an email address before this Agency to receive the notice of availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, no administrative appeal can be made against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On February 7, 2024, the respondent has proceeded to pay the sanction in the amount of 2,400 euros, making use of the two reductions provided for in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the waiver of any action or administrative appeal against the sanction and the acknowledgment of responsibility concerning the facts referred to in the Initiation Agreement.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions..."

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in Regulation (EU) 2016/679, in this organic law, by the regulatory provisions issued for its development and, to the extent that they do not contradict them, subsidiarily, by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides as follows:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure will apply reductions of at least 20% on the amount of the proposed sanction, which are cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure and their effectiveness will be conditioned on the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202401083, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO NOTIFY this resolution to HOGAR LUZ Y GAS S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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